Revision Date:
July 1, 2026

Background:
An individual who is required to participate in Employment Services (ES) program activities as a condition of receipt of California Work Opportunity and Responsibility to Kids (CalWORKs) benefits is subject to noncompliance and sanctions if they fail or refuse to comply with program requirements without good cause.

Purpose:
The purpose of this revision is to update noncompliance and sanction policies from changes introduced by Senate Bill (SB) 119 and All County Letter (ACL) 26-28. This revision includes several changes to noncompliance and sanction processes, such as establishing a period during which noncompliance and sanction cannot be applied once CalWORKs is approved, allowing multiple rescheduling of cause determination appointments, ensuring child care is secured prior to initiating noncompliance, and simplifying the sanction cure process.

Policy:
No Sanction Period (NSP)
Effective July 1, 2026, mandatory ES participants are not subject to noncompliance and financial sanctions within the first 90 calendar days from the date they are approved for CalWORKs. This 90-day NSP restarts with each CalWORKs approval. During the NSP, participants are eligible to receive necessary supportive services and resources to remove barriers affecting successful engagement and participation. After the NSP, the participant is subject to noncompliance and sanctions.

Noncompliance
Participants are subject to ES sanctions whenever they fail or refuse to comply with program requirements without good cause and subsequently fail or refuse to agree or comply with a compliance plan without good cause. Participants cannot be sanctioned for assignments not provided in writing.

Noncompliance with program requirements includes a failure or refusal to:
- Sign an ES plan
- Participate in an assigned program activity
- Provide required proof of satisfactory progress in an assigned program activity
- Accept employment
- Continue employment
- Continue employment at the same level of earnings

Good cause reasons supporting the failure or refusal to comply with program requirements must be evaluated and allowed if valid.

Cause Determination (CD)
A CD appointment must be scheduled within 20-calendar days of the sanction notice of action to provide the participant an opportunity to demonstrate that they have good cause for refusal or failure to comply

with the program requirements. The CD appointment may be rescheduled as needed within the 20 calendar day compliance period. If good cause is found, the sanction request will be rescinded.

Compliance Plan

If there is no good cause found for the failure or refusal to comply, the participant can agree to a Compliance Plan (CP) to avoid a sanction upon successful completion.

To resolve the instance of noncompliance, the participant is required to:

- Sign a WTW 32 *Compliance Plan* and
- Satisfactorily perform the activity specified in the WTW 32

The timeframe of the CP cannot exceed the timeframe of the original activity that caused the instance of noncompliance, and the CP cannot exceed 60 calendar days.

Sanctions for Two-Parent Assistance Units

All noncompliance and sanction procedures must be applied independently to each adult in a two-parent Assistance Unit (AU). Participation by the second parent does not cure the first parent's sanction. Each parent must cure their own sanction independently. Additionally, if one parent is sanctioned, the second parent must begin or increase hours of participation required by the household to avoid being sanctioned as well, unless exempt or meeting good cause criteria.

Sanction Effective Date

An ES sanction is effective immediately after the 20-day CD period has ended and either:

- No good cause has been found, or
- No good cause has been found, and the participant does not agree to a CP

The participant is considered sanctioned the day after the 20-day CD period has ended (21st day) and must meet requirements to cure a sanction even though the financial sanction does not start until the date reflected on the notice of action sent to them.

Sanction Cure

A sanction will end when the noncompliant participant contacts eligibility or ES staff to request to cure their sanction with an intent to participate in ES activities. The sanction cure request can be made verbally or in writing. The request date is considered the sanction cure contact date which determines the restoration of aid month.

Restoration of Aid

When a sanction is successfully cured, cash aid will be restored effective the first day of the month following the sanction cure contact date, if all other eligibility criteria is met.

Sanction Curing After Break in Aid

Sanctioned individuals who reapply for CalWORKs after a break in aid are automatically deemed as having requested to cure their sanction with an intent to participate in ES activities. The sanction is ended during the CalWORKs intake process, and aid is restored in the application month following existing CalWORKs eligibility requirements.

Procedure:
Processing Guides (PG) 10-025.A1 *ES Noncompliance Process*, PG 10-025.A2 *ES Cause Determination Process*, PG 10-025.A3 *ES Compliance Plan*, PG 10-025.A4 *ES Sanction Cure Process*, PG 10-025.A1 Appendix A *ES Noncompliance Process*, PG 10-005.A1 *ES Referral Process*, and PG 10-020.B1 *ES Good Cause*.

References:
Manual of Policies and Procedures (MPP) 42-721
All County Letter (ACL) 03-59; 04-47; 06-27; 25-78; 26-28

Sunset Date:
This policy will be reviewed for continuance on or by July 31, 2029.

7/30/24

Alberto Banuelos, Ph.D., Interim Director
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